

Chapter 210

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[HISTORY: Adopted by the Board of County Commissioners (now County Council) of Allegheny County as indicated in article histories. Amendments noted where applicable.]

CHARTER REFERENCES

For additional information regarding County Authorities, see Charter Art. X.

ALLEGHENY COUNTY CODE

ADMINISTRATIVE CODE REFERENCES

For additional information regarding County Authorities, see Administrative Code Art. 203.

ARTICLE I
Sports and Exhibition Authority
[Adopted 1-12-1954]

§ 210-1. Intent to organize.

It is the desire of the Board of County Commissioners of the County of Allegheny, a County of the second class in the Commonwealth of Pennsylvania, and said Board of County Commissioners hereby signifies its intention to organize a joint authority, together with the City of Pittsburgh, a city of the second class, situate in the County of Allegheny and Commonwealth of Pennsylvania, under the Public Auditorium Authority Law, Act No. 270, approved July 29, 1953, to be known as the "Sports and Exhibition Authority of Pittsburgh and Allegheny County."

§ 210-2. Appointing members to Authority.

The Board of County Commissioners hereby appoints as members of the Board of the Sports and Exhibition Authority of Pittsburgh and Allegheny County the following persons for the following terms:¹

§ 210-3. Articles of Incorporation. [Amended 5-2-1974; 12-27-1983]

In pursuance of said desire and intention and in conformity with the terms and provisions of said Public Auditorium Authorities Law, the proposed articles of incorporation are hereby set forth in full, as follows:

Articles of Incorporation

To the Secretary of the Commonwealth of Pennsylvania; Harrisburg, Pennsylvania

In compliance with the requirements of the Public Auditorium Authorities Law, Act No. 270, approved July 29, 1953, and pursuant to a resolution of the County of Allegheny, adopted January 12, 1954, and recorded in minute book volume 35 the [date] day of [date] 1954, and recorded in Ordinance book volume ____, page ____, the Board of County Commissioners of the County of Allegheny and the Council of the City of Pittsburgh, desiring that a joint Auditorium Authority be established and that a certificate of incorporation be issued to said Authority, do hereby certify:

- A. The name of the Authority shall be: "Public Auditorium Authority of Pittsburgh and Allegheny County."
- B. The Authority is formed under the Public Auditorium Authorities Law, Act No. 270, approved July 29, 1953
- C. The names of the incorporating County and City are the County of Allegheny and City of Pittsburgh.

The names and addresses of the County Commissioners of the County of Allegheny are as follows: [Here followed the names and addresses of the County Commissioners of the County of Allegheny.]

The names and addresses of the Mayor and the Council of the City of Pittsburgh are as follows: [Here followed the names and addresses of the Mayor and the Council of the City of Pittsburgh.]

1. Editor's Note: A list of current Authority members is on file in the County offices.

Articles of Incorporation

- D. The names, addresses, appointment and terms of office of the first members of the Board of said Authority are as follows: [Here followed the names, addresses, appointment and terms of office of the first members of the Board of said Authority.]
- E. The term of existence of Public Auditorium Authority of Pittsburgh and Allegheny County shall be extended to a date 50 years from the date of approval of this article of amendment.

§ 210-4. Filing of Articles of Incorporation.

The proposed articles of incorporation of said Authority shall be executed by and on behalf of the County of Allegheny by the Chairman of the Board of County Commissioners of said County and the seal of said Council shall be thereto affixed, attested by the Chief Clerk of the Board of County Commissioners of said County and filed with the Secretary of the Commonwealth. The Solicitor of the County of Allegheny in conjunction with the Solicitor of the City of Pittsburgh is hereby authorized and directed to cause to be published a notice of intention to file the articles of incorporation with the Secretary of the Commonwealth as required by the aforementioned Act.

ARTICLE II

**Authority for Improvements in Municipalities of Allegheny County
[Adopted 5-29-1968]****§ 210-5. Intent to organize.**

Is the desire of said Board of County Commissioners of the County of Allegheny, in the Commonwealth of Pennsylvania and said Board of County Commissioners hereby signifies its intention to organize a municipal authority under the Municipality Authorities Act of May 2, 1945, P.L. 382, as amended.

§ 210-6. Articles of Incorporation. [Amended 9-25-1980]

In pursuance of said desire and intention and in conformity with the terms and provisions of said Municipality Authorities Act and its amendments, the proposed Articles of Incorporation are hereby set forth in full as follows:

Articles of Incorporation of the Authority for Improvements in Municipalities of Allegheny County

To the Secretary of the Commonwealth of Pennsylvania; Harrisburg, Pennsylvania

In compliance with the requirement of the Municipality Authorities Act of 1945, approved May 2, 1945, P.L. 382, as amended, and pursuant to a resolution adopted by the municipal authorities of the County of Allegheny in the Commonwealth of Pennsylvania, that a Municipal Authority be established under the provisions of the aforementioned law, the County of Allegheny, desiring that a Municipal Authority be established and that a certificate of incorporation be issued to said Authority, does hereby certify.

- A. The name of the Authority shall be: "The Authority for Improvements in Municipalities of Allegheny County."
- B. The Authority is formed under the Act of May 2, 1945, P.L. 382, as amended.
- C. No other authority has been organized under the provisions of this Act or the Act approved June 28, 1935, P.L. 463, and is in existence within said County except the Allegheny County Sanitary Authority was incorporated under the provisions of the Act of May 2, 1945, P.L. 382, as amended, on March 12, 1946, by the County of Allegheny, which was joined therein by the City of Pittsburgh on March 16, 1955.
- D. The name of the incorporating municipality is "County of Allegheny."
- E. The names and addresses of the Board of Commissioners of the County of Allegheny are as follows: [Here followed the names and addresses of the Board of Commissioners of the County of Allegheny.]
- F. The names and addresses and terms of office of the first members of the Board of said Authority are as follows: [Here followed the names, addresses and terms of office of the first members of the Board of the Authority.]
- G. The number of members of the Board of the Authority for Improvements in Municipalities of Allegheny County shall be increased from five to seven members, one of whom shall serve for 5 years and one of whom shall serve for 4 years. The Board of County Commissioners of Allegheny County who are the governing officers of the incorporating municipality of the Authority.

§ 210-7. Filing of Articles of Incorporation.

The proposed articles of incorporation of said Authority shall be executed by and on behalf of the County of Allegheny by the members of the Board of Commissioners of said County or a majority of them, the seal of said County shall be thereto affixed and attested by the Chief Clerk or Acting Chief Clerk for said Board. The Solicitor is authorized and directed to cause to be published the notice of intention to file the articles of incorporation as required by the aforementioned act, and when said articles of incorporation are properly executed by the incorporating municipality the same shall be filed with the Secretary of the Commonwealth.

ARTICLE III
Industrial Development Authority
[Adopted 11-20-1969]

§ 210-8. Intent to organize.

It is the desire of the Board of Commissioners of said County of Allegheny in the Commonwealth of Pennsylvania and said Board of Commissioners hereby signifies its intention to organize an industrial development authority in said County and Commonwealth, under the Industrial Development Authority Law.

§ 210-9. Payment required if project or facilities were not owned by Authority.

It is the desire and intention of the Board of Commissioners of said County of Allegheny that the Industrial Development Authority specifically require that all facilities financed by said Industrial Development Authority be required to pay annually in lieu of taxes an amount equal to the taxes required to be paid if the project or facilities were not owned by said Authority.

§ 210-10. Articles of Incorporation. [Amended 7-2-1981]

Pursuant to said desire and intention and in conformity with the terms and provisions of said Industrial Development Authority Law, the proposed articles of incorporation are hereby set forth in full as follows:

Articles of Incorporation of Allegheny County Industrial Development Authority

To the Secretary of the Commonwealth of Pennsylvania, Harrisburg, Pennsylvania:

In compliance with the requirements of the Industrial Development Authority Law and pursuant to a resolution adopted by the Board of Commissioners of the County of Allegheny, Pennsylvania, that an industrial development authority be established, under the provisions of the aforementioned law, the Board of Commissioners of the County of Allegheny, Pennsylvania, desiring that an industrial development authority be established and that a certificate of incorporation be issued to said authority does hereby certify:

- A. The name of the Authority shall be: "Allegheny County Industrial Development Authority."
- B. The authority is formed under the Industrial Development Authority Law.
- C. The name of the incorporating municipalities is: County of Allegheny, Pennsylvania. The names and addresses of the Board of Commissioners of the County of Allegheny, Pennsylvania, are as follow: [Here followed the names of the Board of Commissioners of the County of Allegheny, Pennsylvania.]
- D. The names and addresses and terms of office of the first members of the Board of said Authority are as follow: [Here followed the names, addresses and terms of office of the first members of the Board of said Authority.]
- E. The term of existence of the Authority shall be to a date of 50 years from the date of approval of the Articles of Amendment by the Secretary of the Commonwealth.

ARTICLE IV
Hospital Development Authority
[Adopted 5-27-1971]

§ 210-11. Intent to organize.

It is the desire of the Board of County Commissioners of the County of Allegheny, in the Commonwealth of Pennsylvania and said Board of County Commissioners hereby signifies its intention to organize a municipal authority under the Municipalities Authorities Act of May 2, 1945, P. L. 382, as amended.

§ 210-12. Articles of Incorporation. [Amended 4-7-1988]

In pursuance of said desire and intention and in conformity with the terms and provisions of said Municipality Authorities Act and its amendments, the proposed Articles of Incorporation are hereby set forth in full as follows:

Articles of Incorporation of the Allegheny County Hospital Development Authority

To the Secretary of the Commonwealth of Pennsylvania, Harrisburg, Pennsylvania

In compliance with the requirement of the Municipality Authorities Act of 1945, approved May 2, 1945, P.L. 382, as amended, and pursuant to a resolution adopted by the municipal authorities of the County of Allegheny in the Commonwealth of Pennsylvania, that a municipal authority be established under the provisions of the aforementioned law, the County of Allegheny desiring that a municipal authority be established and that a certificate of incorporation be issued to said authority, does hereby certify:

- A. The name of the Authority shall be: "Allegheny County Hospital Development Authority."
- B. The Authority is formed under the Act of May 2, 1945, P.L. 382, as amended.
- C. No other authority has been organized under the provisions of this Act or the Act approved June 28, 1935, P.L. 463 and is in existence within said County except Allegheny County Sanitary Authority was incorporated under the provisions of May 2, 1945, P.L. 382, as amended, on March 12, 1946, by the County of Allegheny, which was joined therein by the City of Pittsburgh on March 16, 1955; and the Authority for Improvements in Municipalities of Allegheny County on June 17, 1968.
- D. The name of the incorporating municipality is: County of Allegheny.
- E. The names and addresses of the Board of Commissioners of the County of Allegheny are as follows: [Here followed the names and addresses of the Board of Commissioners.]
- F. The names and addresses and terms of office of the first members of the Board of said Authority are as follows: [Here followed the names and addresses and terms of office of the first members of the Board.]
- G. The Allegheny County Hospital Development Authority shall continue to transact business and shall exist for a term of 50 years from the date of the approval to the Articles of Amendment of the Authority by the Secretary of the Commonwealth of Pennsylvania.

§ 210-13. Purpose. [Amended 6-23-1988]

The purpose of the Authority is to acquire, hold, construct, improve, maintain, own, operate and lease, as lessor or lessee, health centers, hospitals and hospital facilities, or parts thereof, at such locations as the County Commissioners may direct, in accordance with project or projects specified by the Board of County

Commissioners of Allegheny County in accordance with the provisions of the Municipality Authorities Act of May 22, 1945, P.L. 382, as amended, and it is desirable for the health and safety of the people in the areas served by such projects to have such facilities provided by such Authority.

§ 210-14. Filing of Articles of Incorporation.

The proposed Articles of Incorporation of said Authority shall be executed by and on behalf of the County of Allegheny by the members of the Board of Commissioners of said County or a majority of them, the seal of said County shall be thereto affixed and attested by the Chief Clerk or Acting Chief Clerk for said Board. The Solicitor is authorized and directed to cause to be published the Notice of Intention to file the Articles of Incorporation as required by the aforementioned Act, and when said Articles of Incorporation are properly executed by the incorporating municipality the same shall be filed with the Secretary of the Commonwealth.

ARTICLE V
Higher Education Building Authority
[Adopted 4-9-1981]

§ 210-15. Intent to organize.

It is the desire of the Board of County Commissioners of the County of Allegheny, in the Commonwealth of Pennsylvania and said Board of County Commissioners hereby signifies its intention to organize a municipal authority under the Municipality Authorities Act of May 2, 1945, P.L. 382, as amended and supplemented.

§ 210-16. Articles of Incorporation.

In pursuit of said desire and intention and in conformity with the terms and provisions of said Municipality Authorities Act and its amendments, the proposed articles of incorporation are hereby set forth in full as follows:

Articles of Incorporation of the Allegheny County Higher Education Building Authority

TO THE SECRETARY OF THE COMMONWEALTH OF PENNSYLVANIA:

In compliance with the Municipality Authorities Act of May 2, 1945, P.L. 382, as amended and supplemented, the County of Allegheny, pursuant to a resolution duly adopted by the County of Allegheny signifying said County's desire and intention to form an authority, hereby certifies:

- A. The name of the Authority shall be "Allegheny County Higher Education Building Authority."
- B. The Authority is formed under the Act of May 2, 1945, P.L. 382, as amended and supplemented.
- C. No other Authority has been organized under the provisions of this Act or the Act approved the June 28, 1935, P.L. 463 and is in existence within said County except Allegheny County Sanitary Authority was incorporated under the provisions of the Act of May 2, 1945, P.L. 382, as amended, on March 12, 1946, by the County of Allegheny, which was joined herein by the City of Pittsburgh of March 16, 1955; the Authority for Improvements in Municipalities of Allegheny County on June 17, 1968; and Allegheny County Hospital Development Authority on June 17, 1971
- D. The name of the incorporating municipality is "County of Allegheny."
- E. The names and addresses of the Board of Commissioners of the County of Allegheny are as follows: [Here followed the names and addresses of the Board of Commissioners of Allegheny County.]
- F. The names and addresses and terms of office of the first members of the Board of said Authority are as follows: [Here followed the names, addresses and terms of office of the first members of the Authority.]

§ 210-17. Purpose.

The purpose of the Authority is to undertake any projects for any college, university or institution of higher learning at such locations within or without the County of Allegheny, and which are authorized by the provisions of the Municipality Authorities Act of May 2, 1945, P.L. 382, as amended and supplemented.

§ 210-18. Filing of Articles of Incorporation.

The proposed articles of incorporation of said Authority shall be executed by and on behalf of the County of Allegheny by the members of the Board of Commissioners of said County, or a majority of them, the seal of said County shall be thereto affixed and attested by the Chief Clerk or Acting Chief Clerk for said Board. The Solicitor is authorized and directed to cause to be published the notice of intention to file the articles of incorporation as required by the aforementioned act, and when said articles of incorporation are properly executed by the incorporating municipality the same shall be filed with the Secretary of the Commonwealth.

ARTICLE VI

Dissolution of County Authorities
[Adopted 10-9-2007 by Ord. No. 35-07]**§ 210-19. Dissolution of authorities created by County pursuant to Municipality Authorities Act.**

- A. Any authority delineated in § 5-203.01 of the Administrative Code of Allegheny County or created wholly by Allegheny County under the terms of the Municipality Authorities Act, 53 P.S. § 5601 et seq., shall be dissolved upon the enactment of a County ordinance containing the following elements:
- (1) Explicit language accomplishing the dissolution of a specific, named authority created wholly by Allegheny County under the terms of the Municipality Authorities Act; and
 - (2) Specific delineation of the activity or activities of the authority to be assumed by the County; and
 - (3) Delegation of the assumed function(s) to one or more specific agencies or other entities within the County government; and
 - (4) Delineation of the revenues of the dissolved authority to be assumed by the County, and a description of the fund into which they will be deposited.
- B. The provisions of this section shall not be construed to authorize the dissolution of any authority where such dissolution would violate the express terms of an in-force contract, but the enactment of a dissolution ordinance under the terms of this section shall be deemed to both:
- (1) Preclude the extension, renewal, or any other lengthening of the term of an in-force contract subsequent to the date of enactment of the dissolution ordinance; and
 - (2) Automatically dissolve the named authority at the conclusion of the term of the in-force contract that was running at the time at which the ordinance was enacted, without further action by the County.

§ 210-20. Dissolution of authorities created jointly by County and one or more other municipalities pursuant to Municipality Authorities Act.

Any authority created by Allegheny County in conjunction with one or more other municipalities under the provisions of the Municipality Authorities Act, 53 P.S. § 5601 et seq., shall be dissolved upon the enactment of ordinances containing and subject to the elements required in § 210-19A through E by every municipality that passed legislative enactments to create the authority.

§ 210-21. Dissolution of authorities created pursuant to other statutes.

Dissolution of any authority created in whole or in part by Allegheny County under the terms of enabling legislation enacted by the Pennsylvania General Assembly shall be accomplished according to any procedures delineated within such enabling legislation. In the event that no such dissolution procedures are contained within the applicable enabling legislation, the County shall express its desire to dissolve an authority by enactment of a resolution conveyed to the General Assembly and Governor.